

QUOTA CALL OBC Mahasabha protest in Bhopal for restoration of reservation in July; inset, Madhya Pradesh CM Mohan Yadav

Photographs: ANI



quotas beyond the legal ceiling imposed by the Supreme Court's *Indira Sawhney case* verdict in 1992. MP and Karnataka, analogous while differing in their specifics, are the latest to see a new reality being forged at the intersection of law, policy, politics and the articulated demands of competing population groups. This is a phase—think of it as Mandal 3.0—whose inner motors are set to whir faster as India's first formal caste enumeration since 1931 kicks off with the census in February 2027.

After the MP High Court struck down a 2019 quota law on October 9, politics here has been heating up. It was under the short-lived Kamal Nath government that the state joined the "50 per cent plus" bandwagon, enhancing reservation for Other Backward Classes (OBCs) from 14 to 27 per cent—taking overall quotas to 63 per cent. Now, the ruling Bharatiya Janata Party (BJP) finds itself besieged by accusations, from the Opposition as well as caste groups, that it did not articulate the pro-OBC argument effectively enough in court—practically allowing the 2019 law to lapse. The Mohan Yadav government is in a bind. It can neither step forward confidently, nor backward—literally. Already rocked by forward-caste anger on the UGC front, it now ponders the ramifications at the other end of the spectrum, given how OBC numbers stack up in the state. For now, it has filed a special leave petition (SLP) in the Supreme Court.

It's useful to zoom out and place this episode within the macro trends and, specifically, define Mandal 3.0. Roughly, the first decade and a half after Mandal 1990 embedded backward caste politics as a structural factor everywhere. The second phase, since the late 2000s, saw dominant caste groups like the Jats and Patidars seeking an entry into state OBC lists. This is still ongoing, as the Maratha agitation shows. But the consequent overcrowding in the OBC roster already set off a third phase by about 2015, where state governments of all hues were impelled by political pressure to try and breach the 50 per cent ceiling. Rajasthan, Haryana, Telangana set off the trend, all seeking to accommodate OBCs in quotas more proportional to their populations. The first two encountered the inevitable legal bar. Telangana's 2017 appeal for inclusion in the Ninth Schedule—a la Tamil Nadu, the only state with an exemption—never received central clearance, but it did not give up trying the legislative route, nor did the courts let up till 2025. Now, MP has entered that limbo.

Bipartisan Bugbear

So has Karnataka, through a different route, and with the political cost inverted. It's with the quotas for Scheduled Castes (SCs) and Scheduled Tribes (STs) that it attempted to cross the high pass. The portion for OBCs had remained unchanged at 32 per cent since 2002, capping total quota at exactly 50 per cent for the next two decades. In 2022, the BJP government led by Basavaraj Bommai expanded the 1958-vintage quotas for SCs and STs—from 15 to 17 per cent, and 3 to 7 per cent, respectively. Now, four years later, the Congress government is in a spot. In its October 12 verdict, the high court said taking aggregate caste quotas beyond 50 per cent violates Articles 14 and 16 of the Constitution. (The EWS quota, invented in 2019, is deemed to be outside that because it is for 'Economically Weaker Sections', not caste-based, though it tests its own dictum by excluding OBCs and SC/STs.)

The MP High Court offered more nuance. A division bench of Justices Anand Pathak and Vinay Saraf said it was not against OBC quotas per se but the case for enhanced portions was not made out by the data placed before it. Further, it ruled that job recruitments of OBCs made under the 2019 law till September 29, 2022, would remain legally safe; those from beyond the date would be annulled. Under Shivraj Singh Chouhan, beginning March 2020, the BJP had actively



"With 10 per cent EWS quota, the total reservation in Madhya Pradesh stands at 60 per cent, which breaches 50 per cent. This has been allowed by the SC. Why can't 50 per cent then be breached for OBCs?"

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